Discovery Law & Motion

16. 9:01 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
***HEARING ON MOTION FOR DISCOVERY COMPEL INTERROGATORY RESPONSES, WAIVE OBJECTIONS, AWARD SANCTIONS**
FILED BY: NEXT LEVEL STRATEGIES, INC.
****TENTATIVE RULING:****

Plaintiff and judgment creditor Next Level Strategies, Inc. ("Judgment Creditor") filed a Motion to Compel Interrogatory Responses, Waive Objections, Award Sanctions against defendant and judgment debtor Nextgen Laboratories ("Judgment Debtor") on November 10, 2025 (the "Motion to Compel"). The Motion to Compel was set for hearing on April 20, 2026.

Background

A money judgment was entered by the Court on May 14, 2024 (the "Judgment") against the Judgment Debtor.

After entry of Judgment, the Judgment Creditor served the Judgment Debtor with special interrogatories (the "Special Interrogatories"). See Declaration of Bryan D. Sampson filed November 10, 2025 (the "Supporting Declaration"), ¶11; see also Exhibit List re Motion to Compel filed November 10, 2025, **Exhibit 3** ("WRITTEN INTERROGATORIES, SET 1, TO JUDGMENT DEBTOR"). The Special Interrogatories were served on July 3, 2025 by mail on Judgment Debtor at 4229 Birch Street, Suite 130, Newport Beach, CA 92660. *Id*. at **Exhibit 3** (Declaration of Service).

Analysis

Under Code of Civil Procedure section 708.020, a judgment creditor may propound written interrogatories to a judgment debtor, in the same manner as provided for discovery generally in a pending civil action, commencing with Code of Civil Procedure section 2030.010. See Code Civ. Proc. § 708.020(a). Interrogatories served on a judgment debtor may be enforced in the same manner as interrogatories in a civil action. *Id*. at § 708.020(c).

Where a party to whom a discovery request is propounded fails to serve a timely response, the propounding party may move for an order compelling a response. See Code Civ. Proc. § 2030.290 (as to interrogatories). The propounding party may also seek the imposition of monetary sanctions. Id.

With a five calendar day extension for service of the Special Interrogatories by mail, the responses were due to be served on or before August 7, 2025. No responses were received before the deadline. Supporting Declaration, ¶12. Despite meet and confer efforts, no responses have been received since. See *id*. at ¶13 *et seq*.

Having considered the moving papers and any further pleadings submitted, the Court makes the following findings as to the Special Interrogatories at issue:

1. Judgment Debtor was duly served with the subject Special Interrogatories.
2. No timely response was made to the Special Interrogatories by Judgment Debtor.
3. Judgment Creditor engaged in meet and confer efforts and Judgment Debtor did not respond to

those communications and did not provide responses to the Special Interrogatories.

4. No opposition or other responsive pleadings by Judgment Debtor have been filed with the Court.

Sanctions

Judgment Debtor's failure to respond to the Special Interrogatories even after the deadline to do so had passed and demands for responses were made constitutes failing to respond to an authorized method of discovery, pursuant to Code of Civil Procedure section 2023.010(d).

Judgment Debtor's failure to respond to meet and confer efforts regarding the Special Interrogatories constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Judgment Debtor constituted conduct that was a misuse of the discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely respond to the Special Interrogatories, the Court finds that Judgment Debtor did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motion to Compel is GRANTED.
2. **Judgment Debtor shall serve verified responses to the Special Interrogatories within thirty (30) calendar days of notice of entry of this order.** The Court finds that any objections to such Special Interrogatories have been waived to the fullest extent permitted by applicable law. See Code Civ. Proc. §§ 2030.290.
3. Such responses shall be served on the propounding party via overnight mail to propounding party's attorney's office or other means providing tracking of delivery. Judgment Debtor shall thereafter prepare and execute a proof of service of such responses, signed under penalty of perjury.
4. Judgment Debtor shall pay monetary sanctions to the Judgment Creditor in the amount of **$960.00** (the "Monetary Sanctions"). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys' fees, incurred by the Judgment Creditor as a result of the foregoing conduct by Judgment Debtor. In fixing said amount, the Court has considered all evidence in the record before the Court, including the supporting declarations of the moving party. **The Monetary Sanctions shall be paid by Judgment Debtor within thirty (30) calendar days of notice of entry of this order.**
5. The Court shall enter the order after hearing.

17. 9:01 AM CASE NUMBER: C23-02250
CASE NAME: MICHAEL GALLINETTI VS. CHRISTOPHER JOACHIM